

Academic Libraries and Non-Disclosure Clauses: institutions should internally mandate against them

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As [I've said before](#), including in my oral evidence to the UK House of Commons BIS Select Committee Inquiry into Open Access in 2013, non-disclosure agreements in academic publishing contracts are awful. They make a potentially monopolistic enterprise (because every article/book is unique and because brand is such a strong driver of academic behaviour, there is little competition) into one that exploits that monopolistic position in terms of pricing.

Universities should not stand for this. Indeed, the UK government's response was that it "agrees that HEIs [Higher Education Institutions] should not be required by publishers to accept non-disclosure clauses in publishing contracts which involve public funds". That said, because the current UK government is a centre-right, market-driven operation, it also seems to refuse to refer such behaviour to the competition commission.

Libraries do not, though, have to stand for this. And they aren't! I was overjoyed to read, today, on Twitter about the [University of Alberta's statement](#) on this exact topic:

To promote openness and fairness among libraries that license scholarly resources, the University of Alberta Libraries (UAL) will no longer enter into vendor contracts that require non-disclosure of pricing information or other information that does not constitute a trade secret. All new and renewed licenses submitted with non-disclosure or confidentiality clauses will not be signed but henceforth will be referred to the Office of the Vice-Provost (Learning Services) and Chief Librarian, for final decision.

This is a fine example that other institutions should replicate. As they note, this situation "has resulted in wide price discrepancies that point simply to successful bargaining, as opposed to concrete factors such as student enrollment numbers". This does not have to mean undifferentiated pricing. Indeed, if one institution cannot afford access (or OA fees), there is a case for differentiation. To do so in secret, however, does not empower libraries: it is a divide and rule strategy.

Do not tolerate this. Push for internal mandates at your institution against non-disclosure agreements in academic publishing contracts.